

Nadia Zahmoul

Subject: Re: EX107 — Transcript Application at Public Expense — BV20D01752 — Zahmoul
Date: Tuesday, April 14, 2026 at 8:53:19 AM British Summer Time
From: Nadia <nadia@rosekross.com>
To: RCJ Family <rcj.familyhighcourt@justice.gov.uk>
CC: justicecom@parliament.uk <justicecom@parliament.uk>, Andy Slaughter <andy@andyslaughter.com>
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, image008.png, image009.png

Dear Albana,

Thank you for your email of 27 March 2026.

I have two requests.

First — written reasons for the refusal. The EX107 application set out four specific grounds for providing the transcript at public expense. The refusal did not engage with any of them. I formally request written reasons identifying the basis on which each of the four grounds was refused. I made this request on 30 March 2026 and no response has been received. 14 days have now elapsed.

Second — transcript at private expense. I need the transcript and therefore confirm that I will fund it privately. Please process the EX107 form at my expense. I respectfully request the shortest available turnaround time — 24 hours if possible. If 24 hours is not available, please confirm the shortest turnaround that can be arranged and provide the cost.

Please confirm receipt, the expected delivery date, and the cost.

This correspondence is copied to the Justice Committee for the parliamentary record.

Yours sincerely,

Nadia Zahmoul nadia@rosekross.com BV20D01752

Nadia Zahmoul
Claimant — Zahmoul v Secretary of State for Justice & HMCTS
High Court (Administrative Court) | Case Ref: AC-2025-LON-004293

Transparency Notice:
A public archive of officially filed, lawfully publishable documents relating
to this Judicial Review is maintained for reference and verification purposes.

Repository: <https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>

No confidential or private third-party material is published.

On 31/03/2026, 6:41 AM, "Nadia" <nadia@rosekross.com> wrote:

Dear Albana,

Thank you for sending the Judge's further reply.

I respectfully request that the application be reconsidered. The refusal does not engage with the grounds advanced. It answers different questions.

My application is not based on a need to prove that participation measures were directed at trial. I accept that they were. The transcript is required for a different and narrower reason: to establish the oral evidential record against which the subsequent judgments must be assessed.

The issue is not whether a step was taken during the hearing. The issue is what was said in oral evidence, what submissions were made, what clinical and disability matters were expressly raised before the Court, and whether the later

judgments accurately reflect or engage with that record. That cannot be established by the judgments alone, nor by pupil attendance notes, nor by asking third parties to apply for a transcript if they later choose to do so.

The transcript is necessary for at least the following reasons.

- First, the final judgment of 18 April 2024 and the costs judgment of 24 May 2024 are now the subject of a detailed forensic analysis against the underlying evidential record. That analysis identifies specific findings said to be contradicted by oral evidence, written evidence, or submissions, including: (i) the statement that no expert evidence of disability was before the Court; (ii) the treatment of the Oxus issue despite a formal D11 application raising the point; (iii) the characterisation of disability-related evidence; and (iv) the procedural basis on which the later costs judgment proceeded without my participation. Those are matters for which the official transcript is necessary because they turn on what was actually said and put before the Court at the hearing, not merely on what the judgments later record. To give one example: the judgment states that no expert evidence on the applicant's personal circumstances was before the Court. The official transcript will establish whether that is accurate.
- Second, the refusal states that if the police, CPS or National Crime Agency consider a transcript will inform any investigation, they may apply for one. With respect, that does not answer the present application. There is already a formal criminal referral in existence, and one of the central issues is whether the oral evidence and submissions at trial materially differ from the account given in the judgments. My request is to obtain the record necessary to support and particularise that referral. The existence of a power in a third party to apply at some future point does not answer whether reasonable grounds exist now. The grounds exist now. The referral is registered. The transcript is required to support it.
- Third, the refusal states that a transcript is unnecessary because the Court directed participation measures under FPR Part 3A. That answers only a point I did not make. The transcript is required because the judgments contain no meaningful engagement with disability in the evidential and participatory sense, despite repeated references during the hearing. My application expressly stated that the oral proceedings contained multiple references to autism and PTSD while the judgment contains none. The attendance notes record in excess of twenty such references during the ten-day hearing. The judgment contains zero. The transcript is required to establish that contrast on the official record.
- Fourth, the refusal states that if the Chancery Master considers a transcript relevant, he may direct one. Again, with respect, that does not answer the present application. My position is that the transcript is already relevant because the Chancery proceedings arise out of orders and findings made in BV20D01752, and the fairness and evidential basis of those orders is live. The possibility that another court might later direct a transcript does not resolve whether this Court should direct one now when the issue arises from this Court's own proceedings.
- Fifth, the refusal states that the existence of pupil attendance notes and the absence of any previous transcript are not reasons for public expense. On their own, I agree they are not. But that is not my case. My case is that there is currently no official record of a ten-day hearing whose oral evidence is now central to multiple live issues: the contradiction analysis of the judgments, the criminal referral, the disability/participation record, and the downstream Chancery proceedings. In those circumstances, the absence of an official transcript is highly material.
- Sixth, the refusal addresses the cost of transcribing the entirety of the hearing, but does not address why the entirety is said to be unnecessary in circumstances where the judgment analysis identifies issues arising across the hearing as a whole, including opening submissions, cross-examination, disability evidence, Oxus, Imerman, and the evidential basis for later findings.
- The grounds are not speculative. They arise from a structured analysis of the judgments against the underlying evidential record, which identifies specific instances where findings appear to differ from the oral evidence, written evidence, or submissions placed before the Court. That analysis cannot be verified or tested without the official transcript.
- The transcript is necessary because the present issue is not simply what orders were made, but whether the official judgments accurately reflect and engage with the oral evidential record of a ten-day final hearing. That question cannot be answered without the official transcript.
- If the Court considers that a narrower order is appropriate, I invite the Court to specify which parts of the hearing it regards as sufficient. I am content to proceed on that basis. A bare refusal of the whole request without identifying any part as sufficient is not an engagement with the substance of the application.

Yours faithfully,

Nadia Zahmoul
Veritas Numquam Perit

Litigant in Person
BV20D01752

On 30/03/2026, 1:19 PM, "RCJ Family" <rcj.familyhighcourt@justice.gov.uk> wrote:

Dear Nadia,

Please see further reply from the judge:

As previously indicated, the EX107 discloses no reasonable grounds for expending public funds on transcribing the entirety of a ten-day hearing. The cost of transcribing a ten-day hearing at public expense represents a very considerable call on public funds. Against this, none of the four matters set out in the covering letter disclose a reason why the entirety of the hearing requires to be transcribed.

With respect to the first matter, if the police, CPS or National Crime Agency consider that a transcript will inform any investigation, it is open to them to apply for one.

With respect to the second matter, as the letter concedes, the court directed participation measures under FPR Part 3A. Accordingly, a transcript is not required to evidence that step being taken by the court.

With respect to the third matter, again, if the Chancery Division Master considers a transcript is relevant in that claim, he can direct one.

Finally, with respect to the fourth matter, the fact that a note was taken by a pupil barrister and the fact that a transcript has not been previously ordered are not reasons for ordering a transcript at public expense. With respect to the question of a "criminal referral", once again if the police, CPS or National Crime Agency consider that a transcript will inform any investigation, it is open to them to apply for one.

Kind regards

Albana Nika
Administrative Officer
High Court Family Division | HMCTS | Royal Courts of Justice | London | WC2A 2LL
Phone: 0207 947 6000
gov.uk/hmcts

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From: Nadia <nadia@rosekross.com>
Sent: 27 March 2026 15:24
To: RCJ Family <rcj.familyhighcourt@justice.gov.uk>
Cc: justicecom@parliament.uk <justicecom@parliament.uk>
Subject: Re: EX107 — Transcript Application at Public Expense — BV20D01752 — Zahmoul

Dear Albana,

Thank you for confirming that both documents were passed to the Judge.

I note that the covering letter set out four specific grounds and that the refusal states no reasonable grounds are disclosed without addressing any of them.

I formally request the written reasons for the refusal, as I am unable to understand the decision without them.

I require written reasons in order to consider my options, including whether to seek a review of the decision.

Yours faithfully,
Nadia Zahmoul
Litigant in Person
nadia@rosekross.com
07913 328 615
BV20D01752

On 27/03/2026, 3:19 PM, "RCJ Family" <rcj.familyhighcourt@justice.gov.uk> wrote:

Dear Nadia,

I can confirm both documents were sent to the Judge.

Kind regards,

Albana Nika
Administrative Officer
High Court Family Division | HMCTS | Royal Courts of Justice | London | WC2A 2LL
Phone: 0207 947 6000

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From: Nadia <nadia@rosekross.com>
Sent: 27 March 2026 15:17
To: RCJ Family <rcj.familyhighcourt@justice.gov.uk>
Cc: justicecom@parliament.uk <justicecom@parliament.uk>
Subject: Re: EX107 — Transcript Application at Public Expense — BV20D01752 — Zahmoul

Dear Albana,

Thank you for passing on the Judge's decision.

I would be grateful for clarification on one point before I respond substantively. I submitted two documents this morning: (1) the completed EX107 form, and (2) a covering letter setting out the grounds for the public expense application.

Could you please confirm that both documents — the EX107 form and the covering letter — were passed to the Judge for consideration?

I ask because the covering letter set out four specific grounds for the transcript being required at public expense:

1. A formal criminal referral is registered with the Metropolitan Police Service (Crime Contact Reference CCR-6501-26-0100-000; Crime Reference Number 01/7340002/26) in which the oral evidence of the final hearing directly contradicts findings in the judgment. The official transcript is required to support that referral.
2. The judgment of 18 April 2024 contains 111 paragraphs and zero references to the applicant's autism or PTSD, despite the transcript of oral proceedings containing 22 references to those conditions. The official transcript is required to establish that evidential record for law enforcement and court purposes.
3. The attendance notes currently available are pupil notes only and are not sufficient for criminal referral or court purposes. No official transcript has previously been produced of these proceedings.
4. The transcript is required in connection with ongoing Chancery proceedings BL-2024-001217 currently before Master Pester.

If the covering letter was passed to the Judge alongside the form, I would respectfully ask for written reasons explaining why none of those four grounds constitutes reasonable grounds for public expense, so that I can understand the decision and consider my options.

If the covering letter was not passed to the Judge, I would ask that it be resubmitted together with the EX107 form for reconsideration.

I am a litigant in person with diagnosed Autism Spectrum Condition and PTSD. I require written reasons in order to understand the decision.

Yours faithfully,

Nadia Zahmoul
Litigant in Person
nadia@rosekross.com
07913 328 615
BV20D01752

On 27/03/2026, 2:51 PM, "RCJ Family" <rcj.familyhighcourt@justice.gov.uk> wrote:

Dear Nadia,

Please see below response from the Judge:

I am **not** prepared to direct that this transcript be provided at public expense.

The EX107 discloses no reasonable grounds for expending public funds on transcribing the entirety of a ten-day hearing.

Do you still want me to process the EX107 form at your funds?

Kind regards,

Albana Nika
Administrative Officer
High Court Family Division | HMCTS | Royal Courts of Justice | London | WC2A 2LL
Phone: 0207 947 6000
gov.uk/hmcts

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From: Nadia <nadia@rosekross.com>
Sent: 27 March 2026 08:49
To: RCJ Family <rcj.familyhighcourt@justice.gov.uk>
Cc: justicecom@parliament.uk <justicecom@parliament.uk>
Subject: EX107 — Transcript Application at Public Expense — BV20D01752 — Zahmoul

Dear Sir or Madam,

Please find attached my completed EX107 form and covering letter requesting a transcript of the full final hearing in BV20D01752 (Zahmoul v Zahmoul, MacDonald J, 19–28 February 2024) at public expense.

The covering letter sets out the basis for the application and the reasons the transcript is required urgently. I do not require a cost estimate before the transcript is produced.

I am copying the Justice Committee as this application relates to matters currently before them as written evidence.

Yours faithfully,

Nadia Zahmoul

Litigant in Person

nadia@rosekross.com

07913 328 615

BV20D01752

Attachments:

1. Zahmoul_EX107_Transcript_BV20D01752_27Mar2026.pdf
2. Zahmoul_EX107_CoveringLetter_27Mar2026.docx

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